

**PROBATE CALENDAR – Judge Pro Tem. Lloyd Llewelyn, Dept. A (Historic Courthouse)
at 8:30 a.m.**

Conservatorship of Michael Francis McLaughlin

23PR000269

SECOND AND FINAL ACCOUNTING AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND ESTATE, FOR ATTORNEY FEES, AND FOR TERMINATION OF CONSERVATORSHIP

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. The Court has been informed that the Conservatee is deceased. The Conservatorship is therefore terminated. All future hearings are VACATED.

.....
In The Matter of Delaney and Dorothy Graham
Joint Living Trust

26PR000086

PETITION FOR ORDER DETERMINING TITLE TO PROPERTY

TENTATIVE RULING: The petition is GRANTED.

.....
Conservatorship of Joseph Leonard Shea

PR20420

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on June 22, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

**CIVIL LAW & MOTION CALENDAR – Judge Pro Tem. Lloyd Llewelyn, Dept. A
(Historic Courthouse) at 8:30 a.m.**

Niebaum Coppola Estate Winery, LP et al v. George Giles
Beeker et al

24CV001130

[1] CROSS-DEFENDANTS NIEBAUM-COPPOLA ESTATE WINERY, L.P. DBA INGLENOOK AND SOFIA PROPERTIES, L.P.'S DEMURRER TO KERRI L. BEEKER'S FIRST AMENDED CROSS-COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the Eleventh Cause of Action - Good Faith Improver. The demurrer is SUSTAINED as to the Tenth Cause of Action - Resulting Trust and Fourteenth Cause of Action

- Quiet Title. Cross-Complainant is granted 10 Court days' leave, from notice of entry of the instant order, to file a Second Amended Cross-Complaint, limited to amendments aimed at stating good causes of action for imposition of a resulting trust, and quiet title. The demurrer is OVERRULED in all other respects. Cross-Defendants are directed to file and serve a notice of entry of the instant order.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Plaintiffs and Cross-Defendants Niebaum-Coppola Estate Winery, L.P. dba Inglenook and Sofia Properties, L.P. (collectively Cross-Defendants) demur, pursuant to Code of Civil Procedure Sections 389 and 430.10, subdivision (d), to the First Amended Cross-Complaint (FACC) filed by Cross-Complainant Kerri L. Beeker. Specifically, Cross-Defendants demurrer to each of the claims asserted against them through the FACC on grounds that (1) Ms. Beeker failed to join a necessary party to the action and (2) the FACC fails to allege facts sufficient to state any of the purported causes of action.

B. LEGAL ANALYSIS

A complaint must contain “facts constituting the cause of action.” (Code Civ. Proc., § 425.10, subd. (a)(1).) “The party against whom a complaint or cross-complaint has been filed may object, by demurrer . . . to the pleading on . . . grounds [that] . . . [t]here is a defect or misjoinder of parties [and/or] [t]he pleading does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subs. (d) and (e).¹)

1. Indispensable Party

A party may demurrer to a complaint on grounds that “there is a defect...of parties.” (§ 430.10, subd. (d).) A “defect of parties” appears where “some third person is a ‘necessary’ or ‘indispensable’ party to the action; and hence must be joined before the action may proceed.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2021) § 7:80, p. 7(I)-40.) “A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition

¹ All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.

of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest.” (§ 389, subd. (a).)

“A person meeting these requirements is often referred to as a ‘necessary party.’ [Citation.] [¶] ‘If a person is determined to qualify as a “necessary” party under one of the standards outlined above, courts then determine if the party is also “indispensable.” Under this analysis “the court shall determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable. The factors to be considered by the court include: (1) to what extent a judgment rendered in the person’s absence might be prejudicial to him or those already parties; (2) the extent to which, by protective provisions in the judgment, by the shaping of relief, or other measures, the prejudice can be lessened or avoided; (3) whether a judgment rendered in the person’s absence will be adequate; (4) whether the plaintiff or cross-complainant will have an adequate remedy if the action is dismissed for nonjoinder.” [Citation.]’ [Citation.]” (*American Indian Model Schools v. Oakland Unified School Dist.* (2014) 227 Cal.App.4th 258, 296.)

“None of these factors is determinative or necessarily more important than another. [Citations.] Further, the court’s consideration of these factors largely depends on the facts and circumstances of each case. [Citation.] ‘Whether a party is necessary and/or indispensable is a matter of trial court discretion in which the court weighs “factors of practical realities and other considerations.”’ [Citation.] ‘A court has the power to proceed with a case even if indispensable parties are not joined. Courts must be careful to avoid converting a discretionary power or rule of fairness into an arbitrary and burdensome requirement that may thwart rather than further justice.’ [Citation.]” (*City of San Diego v. San Diego City Employees’ Retirement System* (2010) 186 Cal.App.4th 69, 84 (*City of San Diego*).)

Cross-Defendants first argue that “not only has Kerri failed to join her husband Giles in her claim for community property assets, but Kerri is plainly not entitled to recover as damages the funds that her husband Giles stole from Inglenook and purportedly invested in the Property. Yet, without Giles being a party to the FACC, that is precisely what Kerri is attempting to do. Complete relief cannot be afforded between Inglenook, Sofia Properties, and Kerri on the FACC without Giles’s participation in the cross action.” (FACC at 10:10-15.) Cross-Defendants assert that “[t]he risk of ‘double, multiple, or otherwise inconsistent obligations’ contemplated by Section 389 [subdivision] (a)(2)(ii) is particularly significant here because Giles’s default on the FAC establishes his liability for stealing the funds, but without his participation in the cross-action, the Beekers’ purported rights in the Property may be considered separately, giving rise to the potential for a judgment on the FACC that awards Kerri an interest in the funds that her husband admittedly stole from Cross-Defendants.” (Support Memo at 10:20-25.)

The foregoing arguments are clearly based on an assertion that Cross-Defendants cannot obtain complete relief and/or will suffer prejudice, if Giles Beeker is not named as a “party” in the FACC.

What Cross-Defendants concede, but fail to meaningfully address through the moving papers, however, is that Giles Beeker is a party to the action; a named Defendant in the operative First Amended Complaint (FAC) filed by Cross-Defendants. By failing to address this procedural reality, Cross-Defendants fail to persuade the Court that they cannot adequately defend their interests against Kerri Beeker's claims; that Giles Beeker's involvement as a (defaulted) defendant is not sufficient to place him before the Court in the action for purposes of fully adjudicating Cross-Defendants' rights and interests in the subject matters of the litigation. For example, should Cross-Defendants believe that the nature of the Cross-Claims against them give rise to additional liability from Giles Beeker to Cross-Defendants, Cross-Defendants appear free to seek leave to amend their FAC to assert one or more claims (such as indemnity) against Giles Beeker for this liability.

Through their Reply, Cross-Defendants argue, for the first time, that the claims of the FACC constitute a separate action from the claims raised by the FAC. The authority cited in support of this contention does not, however, involve the question of necessary or indispensable parties. The question before the Court in *Westamerica Bank v. MBG Industries, Inc.* (2007) 158 Cal.App.4th 109 (*Westamerica*) was whether a party's offer to settle only an amended complaint triggered the cost-shifting provisions of Code of Civil Procedure section 998 where such offer "would have left a pending cross-complaint between the identical parties unresolved" (*Id.* at 114.) It was in this context that the *Westamerica* court noted that, "[a] complaint and a cross-complaint are, for most purposes, treated as independent actions." (*Id.* at 134 quoting *Security Pacific National Bank v. Adamo* (1983) 142 Cal. App. 3d 492, 496.) This Court does not find that either the holding, or this portion of the discussion in *Westamerica* changes the analysis of the question presented here: whether a named defendant in an action *must* also be named in a cross-complaint if he is determined to be a necessary and indispensable party.

Cross-Defendants further argue, through their moving papers, that if the Court is not prepared to sustain the instant demurrer without leave to amend, "Kerri should be granted a short period of leave to join Giles as a cross complainant." (Support Memo at 11:18-19.) This argument suggests a concern that Giles Beeker's claims against Cross-Defendants may be prejudiced if he is not made a Cross-Complainant.

This argument ignores the undisputed fact that Kerri L. Beeker and Giles Beeker are and, at all times relevant to the action, have been spouses of one another. "[W]here existing and absent parties' interests are sufficiently aligned such that the absent party's rights will not be affected or impaired by the judgment or proceeding, the absent party need not be joined. [Citation.]" (*City of San Diego, supra*, 186 Cal.App.4th at 84.) "As to . . . community interest[s], [one spouse] is in privity with [the other spouse], who, in actions involving the property, fully represents both their interests, and [the former] is not a necessary party thereto." (*Secondo v. Super. Ct. of Monterey Co.* (1930) 105 Cal.App. 179, 182.)

As Cross-Defendants acknowledge, citing to paragraph 39 of the FACC, "Kerri seeks to be reimbursed for the \$1.2 million in funds purportedly invested by the Beekers from their 'community property' in the Property." (See Support Memorandum at 10:8-9.) Cross-Defendants fail to address the apparent fact that the interests of Kerri Beeker and Giles Beeker in and to such "community property" are "sufficiently aligned such that the absent party's rights will not be

affected or impaired by the judgment or proceeding . . .” (*City of San Diego, supra*, 186 Cal.App.4th at 84.)

In light of the foregoing, Cross-Defendants fail to persuade the Court that the claims asserted against them in the FACC are defective based on Ms. Beeker’s failure to name Giles Beeker as either a cross-complainant or cross-defendant.

2. Failure to State Claims

A demurrer on grounds that a plaintiff has failed to state a claim is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Such demurrer ““does not admit . . . facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge.’ [Citation.]” (*Kenneth Mebane Ranches v. Superior Court* (1992) 10 Cal.App.4th 276, 291-292.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because “[a] demurrer tests only the legal sufficiency of the pleading...the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14 (*Comm. on Children’s Television*).)

a. *Failure of Condition Precedent*

Cross-Defendants assert that Ms. Beeker’s fraud / intentional misrepresentation, negligent misrepresentation, and promissory estoppel claims fail because the allegations of the FACC demonstrate the existence of a condition precedent to the “promise” that constitutes the representation giving rise to the claims. (See Support Memo at 12:7, *et seq.*)

A general demurrer will lie “where the complaint has included allegations that clearly disclose some defense or bar to recovery.” (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) Where a plaintiff has pled facts that appear to demonstrate an affirmative defense to the claims, they must then “plead around” the defense by alleging facts sufficient to avoid the apparent defense. (See *Gentry v. eBay Inc.* (2002) 99 Cal.App.4th 816, 825.) However, “[a] demurrer based on [an affirmative defense] will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar . . . to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]’ [Citation.]” (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781 (*Geneva Towers*).)

Fundamentally, the Court finds no merit in the Cross-Defendants’ suggestion that the FACC discloses an agreement which included a specific condition precedent, the failure of which demonstrates that the fraud-based claims are necessarily barred. Cross-Defendants assert that “in the FACC, Kerri admits . . . that the transfer of the Property to the Beekers was

contingent on them reimbursing Sofia Properties for the purchase price.” (*Id.* at 12:22-24.) Cross-Defendants cite to paragraph 25 of the FACC. The Court can find no support for the assertion at the cited paragraph of the FACC. The allegations of that paragraph, consistent with the allegations throughout the FACC, are that Cross-Defendants and/or their agents represented that the Beekers could move into the property and that the parties would, thereafter, negotiate towards a transfer of title thereto from Sophia Properties to the Beekers. (See, *e.g.*, FACC at ¶¶ 20 [“Mr. Coppola represented to Giles . . . that the details would be worked out after closing”], 21 [“The Property would be transferred to the Beekers; the only open question was timing and mechanics”], 25 [“Gordon Wang . . . sent an email directly to Cross-Complainant and Giles stating: ‘Once the house is secured, you can move in and we can work out a plan for you to acquire the house with your future proceeds and mortgage’], 27 [“The promise to ‘work out the details later’ was made without intent to perform, and no steps were ever taken to perform it over more than four years”], and 53, subdivision (e) [“The transfer of the Property to the Beeker Family Trust was a matter to be discussed and concluded (Gordon Wang, April 2022)”].) The absence of allegation of a specific condition-precedent defeats the argument that the failure of such condition bars the fraud-based claims.

Moreover, the Court finds no support for Cross-Defendants’ contention that Cross-Complainant “admits (as she must) that at no point did the Beekers tender the \$3.3 million purchase price to Sofia Properties.” (Support Memo at 11:25-12:2.) Cross-Defendants cite to paragraph 41 of the FACC. The Court finds no such admission in that paragraph; particularly when the Court construes these allegations liberally in favor of Cross-Complainant. (See *Skopp v. Weaver*, *supra*, 16 Cal.3d at 438.)

Third, Cross-Defendants’ argument is based on only one aspect of Cross-Complainants’ fraud-based claims. Cross-Defendants assert that these claims “arise from Kerri’s allegation that Cross-Defendants had an agreement that Sofia Properties’ ownership of the Property would be a ‘temporary arrangement’ and Cross Defendants misrepresented that it would be a ‘temporary arrangement’ because Sofia Properties has not transferred the Property to the Beekers.” (Support Memo at 12:19-22.) While this assertion accurately describes *one aspect* of the allegations of misrepresentation, it fails to fully and fairly summarize the fraud-based claims. (See FACC at ¶¶ 11-27, and 53-59.) For example, the Court reads the FACC as also containing allegations that Ms. Beeker was damaged as a result of the Beekers’ reliance on Mr. Coppola’s false (or negligent) representations that he would lend the Beeker’s \$1,000,000 and their decision, in reliance thereon, to abandon alternative financing. (See FACC at ¶¶ 17, 22.) In the context of these allegations the Court does not find the allegations of the arrangement arrived at thereafter – that Sophia Properties would purchase the subject real property pursuant to a “temporary arrangement” – clearly demonstrate that the fraud-based claims are necessarily barred. (See *Geneva Towers*, *supra*, 29 Cal.4th at 781.)

Finally, the Court finds no merit in either of Cross-Complainants’ arguments that these claims are defeated by: (1) the failure to allege that “the Beekers ever present[ed] a firm offer to purchase the Property from Sofia Properties” is fatal to the fraud-based claims (Support Memo at 12:3-4); and (2) allegations “that six months after the close of escrow, Gordon Wang contacted the Beekers about their plan for acquiring the Property” (*id.* at 13:14-18.) Both arguments go to Kerri Beeker’s ability to prove that the alleged representations giving rise to the claims were

false (or that Cross-Defendants negligently represented them to be true) when made. Because “[a] demurrer tests only the legal sufficiency of the pleading...the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, supra*, 35 Cal.3d at 213-14.)

b. *Economic Loss Rule*

Cross-Defendants argue that the economic loss rule bars Cross-Complainants’ tort claims.

“The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise. [Citation.] Quite simply, the economic loss rule ‘prevent[s] the law of contract and the law of tort from dissolving one into the other.’ [Citation.].” (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.) However, the economic loss rule does not bar claims for fraud and intentional misrepresentation that are independent of a plaintiff’s claims for breach of contract. (See *id.* at 991.)

Cross-Defendants assert that “[t]he allegations in the FACC establish Kerri’s claims sound in contract, not in tort.” (Support Memo at 14:17-18.) Cross-Defendants provide no further discussion, and no citation to the allegations of the FACC in support of the assertion. Cross-Defendants fail to cite to any allegations in the FACC of a contractual promise that subsumes Cross-Complainants’ tort claims. It is not the Court’s obligation to pour over the FACC in search of support for Cross-Defendants’ argument. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

c. *Conversion*

Cross-Defendants contend that the FACC fails to state a claim for conversion because “Sofia Properties did not commit a wrongful act.” (Support Memo at 15:4.) Perhaps. But, again, “[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, supra*, 35 Cal.3d at 213-14.) The Court finds that Cross-Complainant has adequately *alleged* that Sofia Properties, through its agents, converted Cross-Complainants’ property by commission of a wrongful act. (See, *e.g.*, FACC at ¶¶ 10, 16-27.)

d. *Unjust Enrichment, Constructive Trust, and Resulting Trust*

Cross-Defendants are correct “[t]here is no cause of action for unjust enrichment. Rather, unjust enrichment is a basis for obtaining restitution based on quasi-contract or imposition of a constructive trust.” (See *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457,

1490.) Cross-Defendants further assert that constructive trusts and resulting trusts are remedies, not causes of action.

These arguments, in effect, take issue with Cross-Complainant's organization of the FACC, and the names given to the sections thereof. The Court finds, in them, no grounds for demurrer. "Even though the plaintiffs labeled their causes of action, that does not mean they are bound by those labels. It is an elementary principle of modern pleading that the nature and character of a pleading is to be determined from its allegations, regardless of what it may be called, and that the subject matter of an action and issues involved are determined from the facts alleged rather than from the title of the pleadings or the character of the damage recovery suggested in connection with the prayer for relief. (Citation omitted.)" (*Jaffe v. Carroll* (1973) 35 Cal.App.3d 53, 57.) "The courts of this state have, of course, long since departed from holding a plaintiff strictly to the 'form of action' he has pleaded and instead have adopted the more flexible approach of examining the facts alleged to determine if a demurrer should be sustained." (*Ibid.*)

Cross-Defendants next contend that Plaintiffs' claim that she is entitled to a constructive trust fails "as no facts are alleged establishing Cross-Defendants acted wrongfully." (Support Memo at 16:8-9.) The Court disagrees. The Court finds sufficient allegations of wrongful acts by Sofia Properties, through its agents, at paragraphs 10 and 16-27 of the FACC.

The Court agrees with Cross-Defendants, however, that the FACC fails to allege facts sufficient to establish a resulting trust.

"A resulting trust arises from a transfer of property under circumstances showing that the transferee was not intended to take the beneficial interest." (13 Witkin, Summary of Ca. Law 11th, Trusts § 348 (2026).) The purpose of a resulting trust is "to enforce the intentions of the parties. It is distinguished from a constructive trust, which is typically imposed to rectify fraudulent behavior." (*Johnson v. Johnson* (1987) 192 Cal.App.3d 551, 556.) Thus, "[w]hen a transfer of property is made to one person, and the purchase price is paid by or for another, a trust is presumed to result in favor of the person by or for whom the purchase price is paid." (13 Witkin, Summary of Ca. Law 11th, Trusts § 351 (2026).)

The Court is unable to find allegations that the parties intended for Cross-Complainant, and not Sophia Properties, to take beneficial interest in and to the subject real property. Similarly, the Court is unable to find allegations that Cross-Complainant paid the purchase price, or that Sophia Properties paid the purchase price for Cross-Complainant. Cross-Complainant directs the Court to no such allegations through her Opposition.

Rather, as discussed above, the allegations of the Cross-Complaint are that, at the time of the closing of escrow, the parties intended for Sophia Properties to purchase the property and to thereafter negotiate terms by which the Beekers could purchase it from Sophia Properties. While the additional allegations that this situation resulted from fraudulent acts supports Plaintiff's prayer for a constructive trust, it does not support her prayer for a resulting trust. (See *Johnson v. Johnson*, *supra*, 192 Cal.App.3d at 556.)

Based on the foregoing, the demurrer is SUSTAINED as to Plaintiff's claim that she is entitled to a resulting trust.

e. *Equitable Lien*

Cross-Defendants contend that Cross-Complainant's Equitable Lien Claim fails as "[a]n equitable lien claim is not stated merely because money is used to improve real property; rather, an equitable lien only arises where there is an expectation for a security interest in real property based upon a promise." (Support Memo at 15:21-23.) The Court can find no support in either of the opinions cited by Cross-Defendants for their contention that money used to improve real property cannot serve as the basis for an equitable lien. In fact, language in each strongly suggests otherwise. (See *Co. of Los Angeles v. Construction Laborers Trust Funds for Southern California Admin. Co.* (2006) 137 Cal.App.4th 410, 414 ["An equitable lien is a right to subject property not in the possession of the lienor to the payment of a debt as a charge against that property. [Citation.] It may arise from a contract which reveals an intent to charge particular property with a debt or 'out of general considerations of right and justice as applied to the relations of the parties and the circumstances of their dealings' [Citation.]"]; see also *Grappo v. Coventry Fin. Corp.* (1991) 235 Cal.App.3d 496, 509 ["In general, equity will create a lien on property where this is necessary to accomplish substantial justice and protect creditors"].)

The Court, therefore, finds no merit in Cross-Defendants' argument that Cross-Complainant's failure to allege "that the parties intended to create any sort of security interest in the Property in favor of Kerri" renders her claim for Equitable Lien defective.

f. *Good Faith Improver*

Cross-Complainant concedes, through her Opposition, that the FACC fails to allege facts sufficient to state a Good Faith Improver claim. (See Opposition at 13:10-14.) The demurrer is, therefore SUSTAINED as to this claim. Cross-Complainant, in announcing her non-opposition to the demurrer as to this claim, does not request leave to amend. As such, the demurrer is sustained as to the good faith improver claim without leave to amend.

g. *Quiet Title*

The Court also finds that Plaintiff fails to allege facts sufficient to state her claim for quiet title. "The purpose of the [quiet title] action is to eliminate an adverse claim and to establish, perfect or 'quiet' the title of the property in one or more of the claimants." (Miller & Starr, 12 Ca. Real Estate (4th ed.) § 40:104.) "A complaint to quiet title . . . must include: (i) a description of the property including both its legal description and its street address or common designation; (ii) plaintiff's title and the basis upon which it is asserted; (iii) the adverse claims as against which a determination is sought; (iv) the date as of which a determination is sought and, if other than the date the complaint is filed, a statement why the determination is sought as of that date; and (v) a prayer for determination of plaintiff's title against the adverse claims. In addition, if the quiet title action is based on the defendant's fraud in obtaining record title, the plaintiff must plead the factual basis for the fraud specifically." (*Id.* at § 40:106.)

The Court cannot determine, from the allegations of the FACC, precisely what title Cross-Complainant seeks to quiet. “Such title must be stated with sufficient certainty to enable the court to see that the plaintiff has such a right as warrants judicial interference. [She] must show the nature of [her] right or title against which defendant asserts an adverse claim. [She] cannot simply allege, as in the case at bar, that [she] has ‘an estate in, interest in, or lien or encumbrance upon’ the property. Defendant was entitled to a distinct statement of the facts which plaintiff claimed to exist, viz., whether [she] claimed ownership of, or a lien upon, or an encumbrance upon the property in question; and it is no answer to an objection to averments made in the alternative, as in the instant case, to say that if either averment is true plaintiff has stated a cause of action.” (*Peck v. Martinez* (1941) 46 Cal.App.2d 855, 856.)

Cross-Complainant alleges only that she “claims *an* interest in the Property adverse to Cross-Defendants . . . [and that] . . . four and-a-half years of possession, investment, and improvement of the Property . . . give rise to equitable title and *an* interest in the Property that is superior to Cross-Defendants’ bare legal title.” (FACC at ¶ 131. Italics added; see also ¶¶ 132 [“The recorded grant deed does not reflect the true agreement between the parties or the equitable interests that arose from the circumstances of the closing”], and 137 [“Cross-Complainant asks the Court to determine, by judgment, the respective interests of Cross-Complainant and Cross-Defendants in the Property . . .”].)

The Court finds that these allegations are not sufficient “to enable the court to see that the plaintiff has such a right as warrants judicial interference” and fails to inform the Defendant “whether [s]he claim[s] ownership of, or a lien upon, or an encumbrance upon the property in question.” (*Peck v. Martinez, supra*, 46 Cal.App.2d at 856.)

Based on the foregoing, the demurrer is SUSTAINED as to this claim.

3. Leave to Amend

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.)

The Court finds, from the nature of the allegations of the FACC and the parties’ arguments relating to the instant demurrer, a reasonable possibility that Plaintiff can state a good cause of action for establishment of a resulting trust, and for quiet title. The demurrer is, therefore sustained as to these claims with leave to amend.

[2] CROSS-DEFENDANT FRANCIS FORD COPPOLA’S MOTION TO STRIKE KERRI L. BEEKER’S FIRST AMENDED CROSS-COMPLAINT

TENTATIVE RULING: The Motion is GRANTED IN PART. Those portions of Kerri L. Beeker’s First Amended Cross-Complaint purporting to assert claims against Francis Ford Coppola are hereby STRICKEN. This order is made without prejudice to Ms. Beeker’s right to

subsequently move, by noticed motion, for leave to re-file said claims. Based on the foregoing, the remainder of the motion is MOOT.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Cross-Defendant Francis Ford Coppola moves, pursuant to Code of Civil Procedure Section 430.10, to strike the First Amended Cross-Complaint (FACC) filed by Cross-Complainant Kerri L. Beeker, and, alternatively, the claim for punitive damages therein.

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper . . . [s]trike out all . . . of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. §436.)

A party’s right to file a cross-complaint is governed by Code of Civil Procedure section 428.50. Pursuant to that statute, a party may, on or before the time as that party files an answer, file a cross-complaint “against any of the parties who filed the complaint or cross-complaint against him or her.” (*Id.* at subd. (a).) “Any other cross-complaint may be filed at any time before the court has set a date for trial.” (*Id.* at subd. (b).) The statute then provides that “[a] party *shall* obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.” (*Id.* at subd. (c).)

Mr. Coppola did not file a complaint against Cross-Complainant. Trial of the matter was initially set by Minute Order of July 9, 2025. Thereafter, Cross-Complainant was required to obtain leave of Court to file any cross-complaint against Mr. Coppola pursuant to Code of Civil Procedure section 428.50, subdivision (c). Cross-Complainant did not obtain leave of Court prior to filing the FACC.

Cross-Complainant takes issue with none of the foregoing through her Opposition. Rather, she asserts only that “[s]hould the Court conclude that leave to name Mr. Coppola was required, the appropriate course is to grant it in the interest of justice, not to strike her claims” (Opposition at 1:16-18.) Cross-Complainant cites to no authority in support of the assertion. Case law squarely holds that, under the circumstances, an order striking the improperly filed cross-complaint is proper. (See *Department of Finance v. City of Merced* (2019) 33 Cal.App.5th 286, 296 [“Given that the City did not even seek leave to file the cross-complaint (far less comply with the preconditions set by the trial court), the court quite properly struck it”]; see also

Loney v. Super. Ct. (1984) 160 Cal.App.3d 719, 724 [“the cross-complaint of petitioners was properly stricken because leave of court was not obtained prior to its being filed”].)

Finally, Cross-Complainant “requests that, to the extent leave was required, the Court grant it now in the interest of justice.” (Opposition at 2:7-9.) That request, however, is not properly before the Court. Due process requires notice to all parties of any such request and an opportunity to oppose.

Based on the foregoing, Mr. Coppola’s Motion to strike the FACC is GRANTED.

[3] CROSS-DEFENDANT FRANCIS FORD COPPOLA’S DEMURRER TO KERRI L. BEEKER’S FIRST AMENDED CROSS-COMPLAINT

TENTATIVE RULING: The demurrer is MOOT.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Cross-Defendant Francis Ford Coppola demurs, pursuant to Code of Civil Procedure Section 430.10, to the First Amended Cross-Complaint (FACC) filed by Cross-Complainant Kerri L. Beeker.

In light of the Court’s concurrent order striking those portions of the FACC that purport to state claims against Mr. Coppola, the instant demurrer is MOOT.

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JPMorgan Chase Bank N.A. v. Noemi M. Leija

25CV002053

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH BE DEEMED ADMITTED

TENTATIVE RULING: The motion is GRANTED. Plaintiff is directed to provide notice of entry of order.